

Suppression of Oxus SPAC and Association with Rakeshev

Summary

The judgment is wholly inconsistent with the evidence. Crucial aspects of the evidence have been **systematically and extensively suppressed**, most notably (i) my diagnosed mental health disabilities (PTSD and autism), (ii) the respondent's employment by **Kenes Rakishev** and his close business association with the Kazakh oligarch, (iii) tangible threats to the children's safety and mine as a result of the proceedings, (iv) evidence of the respondent's illicit and criminal activities, (v) evidence of the respondent's non-disclosures, and (vi) evidence of his dishonesty.

The suppression by the judge(s) of the respondent's close business association with Kenes Rakishev is a matter of national security interest.

The analysis of the evidence is manifestly insufficient, with crucial aspects of it suppressed, and the judge's explanation for his findings perfunctory. The outcome of the proceedings is unfair and biased. The respondent is employed by Kenes Rakishev, and as a result of my witness evidence in these proceedings the children and I have been exposed to tangible threats to our safety, which I have referred to the judge and to the Metropolitan Police. One of the most audacious suppressions of the judgment is the stifling of the respondent's perjuries in connection with Oxus, a US company controlled by Rakishev. The judgment makes findings which are baseless, unsupported by the evidence, and which don't add up to a reasoned explanation. Instead, the judgment reads exactly as it was written: an attempt to deflect, suppress, and refute the evidence without any basis in the hope that something sticks.

The judgment suppresses the respondent's close business association with Kenes Rakishev

1. The respondent is employed by Kenes Rakishev, a Kazakh oligarch who was identified by the UK Parliament members as one of 20 Kazakh individuals who possess massive unexplained wealth, and are implicated in bribery, corruption, opaque transactions, complex networks of offshore shell companies, trusts, and funds, and illicit activities. In her speech to the Parliament on 3 February 2022, Dame Margaret Hodge, referred to Rakishev as "a mysteriously wealthy Kazakh businessman worth up to \$1.6 billion, with close ties to the political elite, and a close associate

of the head of the Chechen Republic, who has been sanctioned by the U.S. Office of Foreign Asset Control for human rights abuses.”

2. Rakishev owns a network of companies, with interests in the US, UK, Kazakhstan, Russia, China, Israel, and the EU. He has been implicated in the theft, concealment and laundering of kleptocracy proceeds on behalf of his father-in-law, and through his own control and pilfering of several Kazakh conglomerates and state-owned entities.
3. In June 2022, Kenes Rakishev appointed Mr. Zahmoul to the board of directors of Oxus Acquisition Corp, a SPAC controlled by the Kazakh oligarch. The respondent and Rakishev met through Marc Holtzman, Chairman of the Board of Directors of Bank of Kigali, Rwanda, former Vice Chairman of Barclays Capital, and former Chairman of Kazkommertsbank in Kazakhstan.

4. Timeline of the respondent’s perjury

- a) **On 8th February 2024**, 11 days before the UK final hearing, Oxus SPAC completed its business combination, and the new shares began trading on Nasdaq under the ticker symbol BRLS. On 8 February 2024 at 4:45pm EST, Rakishev posted a photograph on his Instagram account featuring Mr. Zahmoul, three associates, and himself at the Nasdaq stock exchange in New York. This is a material event.
- b) **Material event.** As set forth in the Securities and Exchange Commission (SEC) proxy statement and prospectus (page 363) dated 16 January 2024 and signed by Rakishev and Mr. Zahmoul, the closing of the business combination on 7th February 2024 is a material event because it represents **the trigger event for the recognition of the respondent’s founder shares.**

“On June 1, 2022, Mr. Karim Zahmoul was appointed as independent director. On June 7, 2022, 50,000 Founder Shares were transferred to Mr. Karim Zahmoul by the Sponsor. The fair value of the 50,000 Founder Shares granted to the Mr. Karim Zahmoul on June 7, 2022, was \$0.02 million or \$0.33 per share. The Founder Shares were granted subject to a performance condition (i.e., the occurrence of a Business Combination). ***Compensation expense related to the Founder Shares is recognized only when the performance***

condition is met under the applicable accounting literature in this circumstance. The fair value of the allocated Founder Shares was measured at fair value using a Monte Carlo simulation model. Stock-based compensation would be recognized at the date the performance conditions are met (i.e., ***upon consummation of a Business Combination***)”, (SEC filing available [here](#))

4:45



kengesrakishev.com



Kenes Rakeshev (second from right) and Mr. Zahmoul (second from left) outside Nasdaq on 8th February 2024 when Oxus/Borealis was launched (BRLS).

- c) **19th to 28th February 2024**: The final hearing took place at the Royal Courts of Justice, High Court. The respondent committed perjury in his sworn statement of assets ES2 dated 19 February 2024. He reported a fair value of \$0 for the Oxus shares. On that day, the shares' fair market value was \$500,000. Again, on 22 February 2024, the respondent stood in the witness box and lied to the court, falsely representing that the value of the Oxus shares was \$0. The Perjury Act 1911 states that perjury occurs *"If any person lawfully sworn as a witness or as an interpreter in a judicial proceeding willfully makes a statement material in that proceeding, which he knows to be false or does not believe to be true."* On that date, the respondent knew this to be false and he knowingly committed perjury with the intention of making a financial gain for himself and causing me a financial loss. He withheld **material information** from the court, failing to disclose that the performance condition for his stock-based compensation had been met 11 days prior to the final hearing and that his founder shares had a market value of \$500,000.
- d) **26th February 2024**: In her closing submissions, the respondent's counsel, Ms. Campbell KC, told the court: "Oxus, Karim Zahmoul was assisting on an advisory basis. **He has some shares; they are of no value**" (transcript p.92 available [here](#)). This was a false statement. On that day the market value of the shares was \$500,000, not \$0.
- e) **28th February 2024**: Immediately after the trial's conclusion, I checked the SEC's website and realized that the business combination had closed and that the respondent had committed perjury. I met with my barrister, Brent Molyneux KC, on the same day. He read the information and confirmed that the respondent had committed perjury and that this constituted material information which should be sent to the judge as soon as possible.
- f) **28th February 2024**: my solicitors emailed to respondent's legal team. *"Dear Valeria, we attach documents in relation to the SPAC merger between Oxus and Borealis which closed on 7th February 2024. The post-merger stock has been trading on the NASDAQ since the 8th February 2024. In his ES2 dated 19.02.2024 he ascribes a nil value to his OXUS equity. Given that the merged entity (ticker BRLS) is trading at a stock price of \$9.20 (and your client had 50,000 shares in the pre-merger OXUS) please can you explain the value of his*

stockholding with reference to the attached documents and any others in your client's possession – and why he ascribed a nil value to his equity in the ES2. We look forward to hearing from you. Kind regards, Faye". My solicitors sent two follow-on emails on 29 February 2024 at 17:07, and 4 March 2024 at 12:46, but the respondent's legal team did not reply. At that stage, Mr. Molyneux KC advised me to write to the judge, which I did on 6th and 7th March 2024.

- g) **6th and 7th March 2024**: On 6 March 2024 I was forced to become a litigant in person due to lack of funding. I emailed Justice MacDonald on 6th and 7th of March and sent him the material information which constituted the proof that the respondent had committed perjury at the final hearing. The email is
- h) **9th April 2024**: Shortly after I exposed the respondent's perjury and emailed the proof of his perjury to the judge and the respondent's legal representatives, my 16-year-old daughter and I were involved in an incident which made me extremely concerned for our safety. We were followed by Rakishev's people from Kensington High St tube station to the flat where we were staying. This is the fourth incident which is directly related to Rakishev and the proceeding. I reported three incidents to the Metropolitan Police, and one happened in Wyoming. The incident involving our daughter was a major turning point for the children and me, and we have felt vulnerable and unsafe since then. Using open-source data, proprietary information, and my knowledge of the respondent, I wrote a confidential report setting forth the business association between the respondent and Kenes Rakishev. ***The confidential report raises legitimate and credible concerns for the children's safety and mine.*** Rakishev is a close friend and business partner of Ramzan Kadyrov, leader of Russia's Chechen Republic and Vladimir Putin's most loyal warlords, providing material financial assistance, military vehicles, and allegedly investing Kadyrov's vast fortune abroad. On 20 December 2017, OFAC designated Kadyrov pursuant to the Magnitsky Act for being responsible for extrajudicial killings, illegal abductions, torture, and other human rights abuses (email to Justice MacDonald dated 9 April 2024)..

- i) I emailed my findings and concerns for our safety to Justice MacDonald on 8 April 2024 and received an automated reply from his clerk, Ms. Anita Knight, stating that they were away from 15 March to 9 April 2024. I emailed the confidential report again on 9 April 2024, and this time received an automated reply stating that Anita was no longer clerk for Justice MacDonald, and his new clerk was Karen Selby-King. I noted that Karen Selby-King was also the clerk to Sir Jonathan Cohen, the judge in charge of Family Division Appeals.
- j) **18 April 2024**: the final judgment was handed down and is entirely inconsistent with the evidence. There are four paragraphs related to Oxus (para. 5, 8, 76, and 93) but no mention whatsoever of the respondent's perjuries, his withholding of material information, and his non-disclosure of \$500,000. All were suppressed. Likewise, there is no mention of the business combination of 7 February 2024, which was the trigger event for the performance-based founders shares. The proofs of perjury were systematically eradicated and suppressed from the judgments, and there was no mention of the SEC filings or the Instagram photograph of Rakishev and the respondent at the Nasdaq launch on 8 February 2024. Such methodical suppression is intentional and calculated.
- k) **29th April 2024**: Judgment made by Justice MacDonald (and Sir Jonathan Cohen) refusing my permission to appeal. Paragraphs 8, 9, and 10 are related with Oxus.

5. Suppression of evidence and cover up.

The two judgments undertake a systematic and extensive suppression of the respondent's business association with Rakishev, the Oxus perjury, and of all negative findings. It relies on the following arguments to stifle the Oxus matter.

- a) **"New evidence" vs "proof of perjury"**: the judge states that I introduced "new evidence" without permission, and therefore he is "satisfied it would not be proper to take the material into account". This is completely wrong. It is difficult to accept that the judge confused "new evidence" with "proof of perjury". That the respondent committed perjury is irrefutable and as such, the judge's argument is plainly wrong.

b) Oxus is a non-matrimonial asset: “As set out at paragraph 76 of the judgment, the wife did not appear to dispute that the Oxus venture was non-matrimonial in nature.”

(i) **Matrimonial vs non-matrimonial.** Firstly, as can be independently verified through the transcript of the evidence, the ownership of Oxus shares was not brought up during the final hearing, and the question of matrimonial vs non-matrimonial was never put to me. At no point during the final hearing did any of the parties provide evidence with regards to the matrimonial nature of Oxus. I am therefore satisfied that the judge’s assertion that “the wife did not appear to dispute that the Oxus venture was non-matrimonial in nature” is baseless and is not supported by the evidence since the question was never put to me.

(ii) **Income vs asset.** Secondly, as per the SEC excerpt in para. 4 (b) above, the Oxus founder shares are a performance-based compensation. In other words, the Oxus founder shares are income, not an asset. **Therefore, whether they are matrimonial or non-matrimonial is completely irrelevant to the matter at hand because they are income.**

(iii) Thirdly, the respondent committed perjury, lied to the court, and directed his counsel to do the same. The respondent suppressed information which was material to the case. I found out on the day the final hearing ended, and my barrister said this was material information. He did not say this was new evidence nor did he say that I needed to apply to introduce the information as new evidence. He said this was perjury and I must inform the judge as soon as possible because of its materiality. Given the significant number of non-disclosures submitted in evidence at the final hearing, the Oxus perjury was very material to the case. I emailed the judge on 6th and 7th March 2024. In my email, I informed the judge that I had lost my legal representation due to lack of funding and therefore, the judge had knowledge that I was a litigant-in-person with mental health disabilities. Given the materiality of the information and the irrefutable proofs I sent him, and given I did not have legal representation, the judge could have directed me to submit the information in accordance with the procedure and using the proper form as he has done several times in the past. The judge did not. An entire month and a half went by during which he did not

make any mention of the perjury, only to suppress the entire matter of Rakishev and Oxus in his judgment of 18 April 2024.

Conclusion

It is very difficult to accept that the judge's assertion that the information I provided with respect to Oxus was "**new evidence**" as opposed to "**proof of perjury**" was made in good faith. Given the judge's seniority in the High Court and given his systematic and exhaustive suppressions of my mental health disabilities, it is more likely than not that he knowingly and intentionally characterized the information I sent on Oxus as "new evidence" instead of "proof of perjury" **in order to suppress the respondent's perjury and suppress his close business association with Rakishev.**

The information I sent to the judge on 7 March 2024 constitutes the elements of the offense and proof of the respondent's perjury. Under the Perjury Act of 2011, **proceedings for contempt of court** should be brought against the respondent. It is utterly wrong and unjust to suppress all the respondent's wrongdoings and to "launder" his reputation and bad character at my expense.

6. Suppression of negative evidence and "Reputation Laundering"

- a) During the proceedings I uncovered substantial evidence of the respondent's involvement in white-collar crime, illicit, and criminal activities, including money laundering of prostitution proceeds, perjuries of IRS tax returns, wire fraud, LLC fraud, and tax fraud.

I made a criminal referral to the IRS: Criminal Investigations, Cyber Unit in New York which resulted in an ongoing criminal investigation into Mr. Zahmoul's money laundering activities of prostitution proceeds. The respondent's barrister asked me in cross examination about the criminal referral and I confirmed that I had uncovered illicit activities which I had referred to IRS CI because of their criminal nature and potential risk of asset forfeiture. The evidence is in the transcripts (p. 43). I reported the LLC fraud to the FBI as well as the involvement of Bank of Jackson Hole in the integration of illicit funds. I made a criminal referral of the respondent's money laundering activities to the Metropolitan Police in London.

b) I provided evidence and a step-by-step explanation of the respondent's money laundering activities using our matrimonial balance sheet to integrate illicit funds from prostitution proceeds into the UK and US banking systems. The court has known since 2022 that approximately 200 pages of Imerman documents lost their confidentiality status on 6 May 2021 when the respondent sent them to me via Signal messaging, accompanied by a litany of abuse. These documents have been referred to as "Pinocchio" throughout the proceedings and in the transcripts of evidence at the final hearing. The "Pinocchio" documents contain all the details of the money laundering process, and evidence the role of the respondent as the mastermind of the operation. It took me two years to put everything together, but it is important to understand that all the information incriminating the respondent was sent voluntarily by himself via Signal messaging. The judgment alleges that I "stole large amounts of confidential information". This is utterly a false and baseless accusation. In addition, the cryptocurrency expert assigned by the judge reviewed the money laundering criminal referral material and communicated with the judge on this matter ahead of the trial. The criminal matters are extensively documented in my Conduct Statement, my Part 25 Statement and in the court bundle. My US attorney wrote to my solicitor and advised that we should ask the court to grant me protection for potential asset forfeiture. The letter is in exhibit to my Part 25 statement. Lastly, the respondent's ex-girlfriend Miss Olivia Molina posted a YouTube video which is publicly available and in which she states that the respondent was the "mastermind" of the prostitution business. Miss Molina's testimony is available on YouTube via the link below. The judgment has suppressed all evidence of the respondent's involvement in criminal activities and his money laundering of prostitution proceeds. The judgment is inconsistent with the transcripts of the evidence submitted at the final hearing.

<https://www.youtube.com/watch?v=ICONR0jV33o>

c) The respondent's illicit activities are very harmful to his reputation and represent a substantial risk to Rakishev's business interests. They also represent a violation of the **SEC Regulation S-K**. Greenberg Traurig LLP, the attorneys of record for Oxus Acquisition Corp. and for Kenes Rakishev have a duty to report to the SEC that Mr. Zahmoul is the subject of an ongoing criminal investigation by IRS:CI into his money laundering of prostitution proceeds. The ramifications of this disclosure are significant. A judgment which exposed Mr. Zahmoul's perjuries, and the SEC violations would be very negative to Rakishev's business interests and could result in a fine and a delisting of the company. Oxus is the only entity controlled by Rakishev which is publicly listed in the US and provides direct integration with the global capital markets and a channel to intermingle illicit and licit funds. Under the current Ukraine-sanctions environment, it is crucial for Rakishev and for the interests of those he represents to keep this access to the US capital markets clean and to avoid any scrutiny by the SEC. It is vital that Mr. Zahmoul maintains an untainted and pristine reputation to conduct business on behalf of Rakishev and represent the oligarch's business interests vis-à-vis the US financial regulators and government agencies. The timing is sensitive as the respondent and Rakishev are in advanced stages of talks with the administration regarding other high-stake projects in the US, notably in the energy sector.

In conclusion, I am simply stating what I know to be true: the judgement is inconsistent with the transcript of the evidence, inconsistent with the cross examinations, and inconsistent with the entire trial. I am further asserting that there is widespread, exhaustive, and systematic suppression of all the wrongdoings, non-disclosures, illicit activities, fraud, undervalued transactions and perjuries committed by the respondent. Mr. Zahmoul has been thoroughly cleansed and absolved. His actions have been sanitised. While I have only dealt with the Oxus perjury in this statement, the suppression of negative findings is widespread throughout the judgments.

7. The Court of Appeal is continuing the suppression and cover-up

Master Meacher at the Court of Appeal is dealing directly with the case and is continuing the suppression and cover-up. He has refused to approve my request for a transcript of the evidence at public expense. He has refused to consider the grounds for appeal and my new Application to Appeal (N161) submitted on 22 July 2024. He has refused to consider my urgent application to enforce the MPS order despite our economic hardship. He has requested a psychiatric report confirming my disabilities. He has not considered my urgent request for a stay of execution to stop the respondent from committing LLC fraud in the US.

- a) **Transcripts of evidence.** I made a request for transcripts at public expense on form EX105 on 25 June 2024 (judgments and evidence). Master Meacher approved it on 26 June 2024. The Court of Appeals sent me the judgments on 23 July 2024. However, the transcripts of the evidence were missing. I followed-up with the Court of Appeal and received a reply on 5 August 2024.

“Master Meacher has directed the below:

I refer to the EX105 filed by Ms Zahmoul.

A transcript of judgment at public expense has been provided.

It is rare, however, for the court to order a transcript of proceedings at public expense for the purposes of an application for permission to appeal. A transcript of proceedings may be ordered at public expense for the purposes of a substantive appeal if it is necessary in the interests of justice for such a transcript to be obtained and the applicant satisfies the financial criteria (see CPR 52.14).

Ms Zahmoul states that “the transcript of the evidence is crucial to this case and to the appeal process”, but provides no reasons to support this assertion. A transcript of proceedings is not required to be included in a core bundle in the Court of Appeal. In these circumstances, I am not persuaded that it is in the interests of justice to order a transcript of proceedings at public expense at this stage.

If the Court considers that the appeal has a real prospect of success and grants permission to appeal, it will determine at that stage what further transcripts (if any) may be required for the appeal hearing.

When the application is referred to a Lord or Lady Justice for determination, the request for a transcript of proceedings at the public expense will be brought to his or her attention”.

Master Meacher read my N161 Application to Appeal, and my Grounds of Appeal dated 22 July 2024. He knows that my entire appeal relies on demonstrating that the judgment is inconsistent with the evidence, and that therefore the evidence is crucial to the appeal.

b) **The children and I are subjected to oppression and severe economic hardship.** The respondent has not made any maintenance payments since February 2024 and is in breach of the MPS order of Justice MacDonald of 9 June 2023. Maintenance is my only source of funds as the respondent has maintained sole ownership and control over our joint matrimonial assets throughout the 29-year marriage. The respondent started executing the final order of 24 May 2024. He made several asset disposals unilaterally, but he directed all proceeds to his individual bank account. The children and I have not received any money since February. We have no money for accommodation, food, groceries, and for our basic needs. I have asked the Court to enforce the MPS order 71 times between 6 March 2024 and 3 June 2024. Instead, the judge made an order to cancel the respondent's obligations under the MPS order, including maintenance payments in arrears. The children and I are homeless, powerless, and have not received a penny from the respondent or from the matrimonial pot since February 2024. We survive through the generosity of friends. Exhibits NZ2 and NZ3 contain the correspondence with the Court. Master Meacher refused to enforce the MPS order, and we are destitute and experiencing severe economic hardship as a result of the unfair proceedings.

c) **I have been intentionally prevented from participating in the legal proceedings since 6 March 2024.** (i) I have no funding to instruct legal counsel, (ii) my mental health disabilities are impeding my normal functioning, (iii) the judge failed to make an order for reasonable participation measures from 28 February 2024 through 24 May 2024 (iv) the respondent has not made any maintenance payments since February 2024, (v) the judge

refused to enforce the MPS order despite 71 requests, (vi) the financial abuse and economic hardship is causing me severe distress and exacerbating my PTSD and autism symptoms, and (vii) the respondent continues to have sole ownership and control over our joint matrimonial assets.

d) **Discrimination and violation of my right to a fair trial.** The respondent has unlimited access to liquidity. He has a team of solicitors and two barristers. He has flats/houses in five cities in France, Portugal, Tunisia, the UK and the US. I have not had equal footing since February 2024. The judge's refusal to enforce the MPS order in March, April, May, and June 2024 meant that not only did the children and I not have accommodation and money for food since February, but also, I could not use some of the maintenance money to instruct legal representation. The economic hardship is intentional. It is to prevent me from participating in the legal proceedings. This pattern is continuing at the Court of Appeal. The respondent has not made a single payment since February 2024 and at the same time, Master Meacher is suppressing my Grounds of Appeal, my mental health disabilities, my economic hardship, my urgent application to enforce the maintenance order and he is pressuring me to move forward despite his knowledge of my financial hardship and my mental health disabilities.

e) **Procedural unfairness.** The final draft orders, cost orders, submissions for anonymization and submissions for costs were done unilaterally by the respondent only. The respondent's barrister did not share any draft orders or any submissions for costs or anonymization with me. There is not a single paragraph in the orders which represents my children's best interests and mine. We have been without a home and without money for food, groceries, and basic necessities since February 2024. I have been without legal representation since 6 March 2024.

8. The judgment suppresses my mental health disabilities and discriminates against me

The overriding failure of the judgment is the systematic and exhaustive suppression of my mental health disabilities. The court cannot make an accurate assessment of my character, presentation, credibility, and integrity if my mental health disabilities are suppressed and if it does not take account of my autism and trauma disabilities which pervade everything in my life and which have a significant bearing on my post separation needs.

- a) **The judge systematically and deliberately suppressed all my mental health disabilities,** including my diagnosed **PTSD and autism spectrum disorder** which are material to every aspect of the case and impede and restrict my daily social and occupational functioning. There is no record of how my mental health disabilities impacted my evidence and the judge's findings. He makes no mention whatsoever of **Part 3A**.
- b) The judgment characterizes my presentation in the witness box as borderline deranged and unhinged and asserts that it is entirely due to my "obsession" with demonstrating that the respondent has vast hidden assets. Having suppressed all evidence of my mental health disabilities, the judge makes **findings on my character which are baseless, offensive, discriminatory, and biased and which are not supported by the transcripts of the evidence.**
- c) The judge failed to record his decision and reasons for making orders for participation measures at the start of the final hearing on 20 February 2024 to assist me in giving my "best witness evidence" to the court.
- d) The judge failed to record the reasons for his decision not to make participation directions under Part 3A in proceedings that involve a vulnerable person or protected party. **There is no record why the judge revoked the participation measures from 28 February to 24 May.**
- e) The judge failed to uphold the rules under Part 3A, which state that the court's duties under rules 3A.3 to 3A.6 apply as soon as possible after the start of proceedings and continue until the resolution of the proceedings.

- f) There is a wholesale failure of the court's duty under Part 3A and PD 3AA to consider my mental health disabilities and to ensure participation measures are in place at all times throughout the proceedings.

Failure to consider autism and trauma in the judgment.

Paragraph 64 is not consistent with the transcripts and is not supported by the evidence.

"The wife's presentation in the witness box on the issue of alleged non-disclosure bordered on the concerning. Her belief that the husband has vast hidden assets is so powerfully held, and such was her urgent need to impress that belief on the court from the witness box, that at times everything she wished to say on the matter tried to emerge at once, causing her very obvious distress. However, whilst I accept that the wife very firmly believes that the husband has tens of millions of pounds in assets hidden and, I am satisfied, has become obsessed with demonstrating that in the context of this litigation, I must conclude that that belief is not borne out by the evidence before the court".

Oxus / Rakishev

Relevant paragraphs in judgment of 18 April 2024

Para. 5: "Following the conclusion of evidence and submissions, the wife proceeded, without permission, to email significant amounts of material to the court. I make clear that I considered that material in circumstances where the wife had, at that point, dispensed with the services of her lawyers, ***but have not taken that material into account in circumstances where I am satisfied that it would not be proper to do so***".

Para. 8: "The husband was a non-executive director for Oxus Acquisition Corp without a salary but with an award of founder shares. He contends that he has now lost that role as the result of a takeover."

Para. 76: "In the foregoing circumstances (and satisfied as I am that the wife has not evidenced the alleged loan from her father and does not appear to dispute that the properties inherited by the husband from his father and the NourZa and Oxus ventures are non- matrimonial).

Para. 93: “The husband submits that he has not been employed for four years and has only a modest earning capacity in circumstances where he has not been employed in the banking industry for a decade, where he has lost his role as a director with Oxus and where his work in renewable energy ceased in 2017 and where his consultancy business EMVirya Ltd has not yet permitted him to draw a salary. Within this context, Ms. Campbell submits that the evidence demonstrates the husband has a modest earning capacity.”

Relevant paragraphs in judgment of 29 April 2024

Para. 8: “With respect to the first ground, the information sent to the court by the wife following the conclusion of evidence and submissions was provided by way of an email to the court on 7 March 2024. The information was not provided to the court in accordance with the provisions of the FPR 2010, was not accompanied by a statement of evidence and no application was made to re-open the evidence following the conclusion of the final hearing.”

Para. 9: “The email of 7 March 2024 contained information concerning a merger said to have taken place on 8 February 2024 involving Oxus and which the wife advanced as further evidence of non-disclosure by the husband, contending the evidence was not consistent with his oral testimony regarding his role with Oxus and the value of his founders shares. Further email communications followed from the wife with extensive attachments, some of which were not copied to the husband or his representatives and some of the material attached to them was stated to be confidential to the court. As with other aspects of the wife’s evidence, the allegations raised by the wife were difficult to follow.”

Para. 10: “In its judgment, the court recorded that the husband’s role as a non-executive director of Oxus Acquisition Corp at paragraph 9. As set out at paragraph 76 of the judgment, the wife did not appear to dispute that the Oxus venture was non-matrimonial in nature. No submissions to the contrary were made during closing submissions. In the circumstances, the court was entitled to disregard the further material submitted by the wife concerning non-matrimonial assets which, in any event, was not provided to the court in accordance with the provisions of the FPR 2010,

were not exhibited to a statement of evidence and where no application was made to re-open the evidence following the conclusion of evidence and submissions.”

Criminal Referrals

1. Mr. Zahmoul is the subject of ongoing criminal investigations by **IRS CI Cyber Unit** for money laundering of prostitution proceeds.
2. Mr. Zahmoul’s criminal activities and his association with Kenes Rakishev were referred to the **FBI**.
3. I referred Bank of Jackson Hole’s actions and collusion with Mr. Zahmoul to the Colorado and Wyoming Banking Commissioners.
4. Mr. Zahmoul has committed LLC fraud in Wyoming and will be brought to justice for fraud.
5. His **CPA’s** committed perjuries on his behalf and falsely represented that they have filed amended returns. Transcripts from the IRS demonstrate that they have not filed anything. I referred their actions to the NY Real Estate Board.
6. In the UK, Mr. Zahmoul’s business association with Kenes Rakishev was referred to the Metropolitan Police.
7. Mr. Zahmoul’s criminal activities, and money laundering of prostitution proceeds (UK-nexus) were referred to the Metropolitan Police.
8. **Forte Securities** transactions involving the disposal of Coinbase securities and transfer of proceeds to Bank of Jackson Hole on 16 September 2022 were referred to the FCA, FINRA, and the Metropolitan Police.